

Four railway companies objected to the provision for traffic facilities and temporary commissions. "The Railway and Canal Traffic Act" of 1888 from where this provision was adapted, was upheld to be appropriate for the British railway situation but the Act of 1890 "was an ill-advised attempt to transplant into India legislation not adapted to its conditions". The Government of India did not yield and remained convinced that the Act was for the betterment of both companies and public. The period of 1890–97 also saw a lot of restructuring of the PWD in the railway branch, with offices and new commands created, even as old ones were discontinued.

### **An independent observer**

In 1901, Sir Thomas [Robertson](#) was appointed as state special commissioner for the Indian Railways by the secretary of state to report on railway administration and organization. In his report of 1903, he advocated for a three-member board for control over railway matters in India. He proposed that the board should comprise a president or chief commissioner who should be a member of the Viceroy's Council, and two other commissioners, all of whom should have an extensive knowledge of railway matters. Moreover, the board should be provided with a secretary, a chief inspector of railways, and Government inspectors.

### **The Railway Board**

Following his recommendations, a provisional railway board was formed in 1901, which was then formalized with a resolution issued in 1905 for the dissolution of the railway branch of the PWD. The control over railways was given to a railway board, which was to report to the department of commerce and industry of the Government of India.

The Board had a secretary, examiner of accounts, under-secretaries for construction and Traffic, a registrar, and a director of railway construction. However, the Board soon faced financial problems and in 1907, a Finance Committee was appointed to look into the matter and some substantial changes were undertaken with respect to the Board's autonomy. The office now had direct access to the Viceroy. The Board was separated from the Department of Commerce and Industry and the Railway Department was formed.